

		Plaintiffs shall file a supplemental brief that sets forth admissible evidence to establish specific jurisdiction over the Moving Defendant. Plaintiffs' supplemental brief is due per code. Moving Defendant shall file a supplemental opposition that responds to Plaintiffs' evidence with admissible evidence. Defendant's supplemental brief is due per code. Any further legal authority cited in supplemental briefs should focus on specific jurisdiction over a foreign defendant who is alleged to be a <u>transferee of a fraudulent transfer</u>. The hearing on the motion to quash is continued to December 17, 2026 at 01:30 PM. Case Management Conference is continued to December 17, 2026 at 01:30 PM. Moving Defendant to give notice.
2	McMillen vs. Bank of America, National Association	The Motion for Summary Judgment or Summary Adjudication brought by Defendant Bank of America, National Association, is DENIED, in whole. Plaintiff's Request for Judicial Notice is DENIED, as the request relates to an unpublished opinion which cannot be considered by this Court, pursuant to California Rules of Court rule 8.1115. Plaintiff attempts to avoid the above, by invocation of the exception articulated in California Rules of Court rule 8.1115(b), which permits consideration of unpublished opinions under the doctrine of collateral estoppel; however, Plaintiff has not demonstrated that collateral estoppel applies. For collateral estoppel to apply, "the issue sought to be precluded from relitigation must be identical to that decided in a former proceeding." (<i>Williams v. Doctors Medical Center of Modesto, Inc.</i> (2024) 100 Cal.App.5th 1117, 1131.) "The 'identical issue' requirement addresses whether 'identical factual allegations' are at stake in the two proceedings, not whether the ultimate issues or dispositions are the same." (<i>Ibid.</i>) Plaintiff relies on <i>Saribekyan v. Bank of America, N.A.</i> (2020) 2020 WL 38676, to establish a Safe Deposit Box Rental Agreement is unconscionable. (See Opposition: 12:9-16 and 13:14-15.) However, "unconscionability is a fact-specific defense...." (<i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 124.) The facts in <i>Saribekyan</i>, upon which the Court relied in finding substantive unconscionability, differ from those alleged herein, such that the actions do not involve "identical issues." (See <i>Saribekyan v. Bank of America, N.A.</i> (2020) 2020 WL 38676, at p. 11 [cited only for purposes of evaluating collateral estoppel].) Moreover, "[w]here there is doubt about the application of issue preclusion, it should not apply." (<i>Williams v. Doctors Medical Center of Modesto, Inc.</i> (2024) 100 Cal.App.5th 1117, 1132.) Defendant's Request for Judicial Notice is DENIED as judicial notice of citable authority is unnecessary and, consequently, irrelevant. (See <i>Randy's Trucking, Inc. v. Superior Court</i> (2023) 91 Cal.App.5th 818, 842, fn. 15 and <i>Quelimane Co. v. Stewart Title Guaranty</i>